

21STCV37594 21STCV37594

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Case Number: 21STCV37594 Hearing Date: August 26, 2026 Dept: O

TENTATIVE RULING

August 26, 2026

21STCV37594 (Vasserfirer, et al. v.

Uber Technologies, Inc.

RELEVANT BACKGROUND

Plaintiffs Anna Vasserfirer

and Arkady Vasserfirer were crossing the intersection at Fairfax when Defendant

Oscar Moquete hit them with his vehicle.

Defendant Moquete was driving a rental vehicle for Uber at the time of

the accident. Plaintiffs filed this

action against Defendants Uber Technologies, Inc. ("Uber") and its

subsidiaries, Raiser LLC and Raiser-CA LLC (collectively "Raiser"). Plaintiffs also named Defendant Checkr, Inc.,

a consumer agency that provides background checks for third parties.

The operative complaint

is the Third Amended Complaint filed on February 14, 2025 alleging: (1) motor vehicle negligence (Uber and Moquete); (2) general negligence (Uber and Moquete); (3) general negligence (Checkr).

On March 16, 2026, the

Court sustained Checkr's demurrer to the Third Amended Complaint without leave

to amend. On March 26, 2026, the Court

entered an order of dismissal as to Checkr.

On April 28, 2026, the

Court granted Defendants Uber and Raiser's Motion for Summary Judgment on the

Third Amended Complaint. On May 29,

2026, the Court entered judgment in favor of Defendants Uber and Raiser. On June 4, 2026, Defendants Uber and Raiser

filed and served a Notice of Entry of Judgment.

On June 8, 2026, Plaintiffs filed a Notice of Appeal of the summary

judgment.

INSTANT MOTION

On March 25, 2026,

Defendant Uber filed the instant motion for an order sealing documents in

support of Defendant Uber's Motion for Protective Order. As of August 24, 2026, no opposition or reply

has been filed.

On April 29, 2026,

Defendant Uber filed the instant motion for an order sealing portions of

Plaintiffs' opposition to Uber's Motion for Summary Judgment. On August 13, 2026, Plaintiffs filed an

opposition. On August 18, 2026, Defendant

Uber filed a reply.

REQUEST FOR JUDICIAL NOTICE

Defendants Uber and

Raiser submit requests for judicial notice in support of both motions to

seal. Defendants seek judicial notice of

the Court's prior sealing orders in this case.

Defendants request judicial notice of the Court's February 13, 2025, May

31, 2024 and February 14, 2025 sealing orders in this action. Defendants' request for judicial notice of

these orders is denied. The Court does

not need to judicially notice documents issued and filed in this action to rely

on them in ruling on these motions to seal.

DISCUSSION

I. Uber's Motion to Seal Documents in Support of Uber's Motion for

Protective Order

A.

Applicable Law

Unless

confidentiality is required by law, court records are presumed to be open to

the public. (Cal. Rules of Court, Rule

2.550(c).) Therefore, pleadings,

motions, discovery documents, and other papers may not be filed under seal

merely by stipulation of the parties.

The parties' agreement that certain documents be filed under seal is

improper and insufficient. (Savaglio

v. Wal-Mart Stores, Inc. (2007) 149 Cal.App.4th 588, 600.) A prior court order must be obtained. (Cal. Rules of Court, Rule 2.55, subd. (a); H.B.

Fuller Co. v. Doe (2007) 151 Cal.App.4th 879, 888.) At a minimum, a party seeking to seal

documents must come forward with a specific list of facts sought to be withheld

and specific reasons for withholding them.

(Id. at 894.)

"Before

substantive courtroom proceedings are closed or transcripts are ordered sealed,

a trial court must hold a hearing and expressly find that (i) there exists an

overriding interest supporting closure and/or sealing; (ii) there is a

substantial probability that the interest will be prejudiced absent closure

and/or sealing; (iii) the proposed closure and/or sealing is narrowly tailored

to serve the overriding interest; and (iv) there is no less restrictive means

of achieving the overriding interest." (NBC

Subsidiary (KNBC-TV), Inc. v. Supr. Ct. ("NBC Subsidiary") (1999) 20

Cal.4th 1178, 1217-1218.)

As

acknowledged in NBC Subsidiary, courts have found various overriding interests that would justify sealing, including privacy interests of a potential juror during voir dire, protection of trade secrets, protection of information within the attorney-client privilege, and enforcement of binding contractual obligations not to disclose.

(NBC Subsidiary, *supra*, 20 Cal.4th at 1222, fn.

46.) Financial data involving

confidential matters relating to the business operations of a defendant may be subject to sealing, if public revelation of such matters would interfere with its ability to compete, the proposed sealing order is narrowly tailored, and no less restrictive means exists to protect the defendant's legitimate proprietary interest. (Universal City Studios,

Inc. v. Supr. Ct. (2003) 110 Cal.App.4th 1273, 1286.)

"The burden

rests on the party seeking to deny public access to court records to establish compelling reasons why and to what extent the records should be made private.

Where the relief extends to sealing permanent court records, the court must be

careful to limit its denial of access by narrow and well-defined orders. Due to its temporary nature and its infringement upon the public right to know, a sealing order in a civil case is always subject to continuing review and modification, if not termination, upon changed circumstances.” (Copley Press, Inc. v. Supr. Ct. (1998) 63 Cal.App.4th 367, 374.)

California

Rules of Court 2.550 and 2.551, which are incorporated into the protective order in this case, make clear that the Court may seal records only upon an evidentiary showing sufficient to warrant the required findings. (CRC 2.550, subd. (d) [“The Court may order that a record be filed under seal only if it expressly finds facts that establish [the required findings].”]; CRC 2.551, subd. (b)(1) [motion to seal “must be accompanied by ... a declaration containing facts sufficient to justify the sealing”].)

B.

Uber’s motion to seal documents in support of motion for protective order is denied.

Here, Uber moves to seal specific

documents and portions of documents it submitted in support of its Motion for

Protective Order filed on March 24, 2026, and originally set for hearing on

August 27, 2026. Uber identifies the

following documents or portions of documents for sealing:

(1) Exhibit

C to W. Christopher Maloney's Declaration in Support of Uber's Motion

for

Protective Order ("Maloney Declaration"), in its entirety;

(2) Separate

Statement in Support of Uber's Motion for Protective Order, at the following:

Page 3, line 22 – page 10, line 6; Page 10, line 15 – page 19, line 24;

(3) Exhibit

A to W. Christopher Maloney's Declaration in Support of Uber's Motion for Protective

Order, at the following: Page 4 at lines 16-17, 21-23, & 28; Page 5, at

lines 1, 5-7, 12-13, 18-19, & 24; Page 6, at lines 1-2, 6, 11-12, 16-19,

23-24, & 28; Page 7, at lines 1, 6-7, 12, 16-17, 22, & 26-27; Page 8,

at lines 4-5;

(4) Exhibit

B to W. Christopher Maloney's Declaration in Support of Uber's Motion for Protective

Order, at the following: Page 7, at line 15; Page 8, at lines 19-20, 22, &

27-28; Page 9, at lines 1, 7, & 8; Page 10, at lines 11-12, 14, 19-20,

& 26; Page 12, at lines 2-3, 5, 10-11, & 17-18; Page 13, at lines 22-23

& 25; Page 14, at lines 4-5, & 11-12; Page 15, at lines 15-16, 18,

& 24-25; Page 16, at lines 4-5; Page 17, at lines 8-9, 11, 17, & 23-24;
Page 18, at lines 27-28; Page 19, at lines 2, 8-9, & 15-16; Page 20, at
lines 19-20, 22, & 27; Page 21, at line 4; Page 22, at lines 8-9, 11, 17-18,
& 24-25; Page 23, at line 28; Page 24, at lines 1, 3, 8-11, & 17-18;

Page 25,

at lines

21-22, & 24; Page 26, at lines 1-2, & 8; Page 27, at lines 13-14, 16,
21-22, & 28; Page 29, at lines 4-5, 13-14, & 20-21; Page 30, at lines
24-25, & 27; Page 31, at lines 6 & 12; Page 32, at lines 17-18, 20,
& 25-26; Page 33, at lines 4; Page 34, at lines 8-9, 11, 17, & 23; Page
35, at lines 27-28; Page 36, at lines 2, 7-8, & 14; Page 37, at lines
18-19, 21, & 26-27; Page 38, at line 6; Page 39, at lines 11-12, & 14;

(5) Exhibit

E to W. Christopher Maloney's Declaration in Support of Uber's Motion

for

Protective Order, at the following: Page 2, paragraphs 2 & 6; Pages 3, 4,

& 5 in

its

entirety; Page 6, at section II; Page 8, at paragraph 5.

Uber argues that

good cause exists to seal these documents because they contain proprietary information. Uber argues there is a stipulated protective order in place, and the documents in question were marked "confidential" pursuant to that stipulated protective order. Uber argues that the information it would like sealed contains information relating to its confidential business operations and disclosure would cause it irreparable harm.

In addition,

Uber notes that Exhibit C to the Maloney Declaration is the deposition testimony of Peter Sauerwein. Uber argues the Court already ordered Sauerwein's deposition testimony sealed on February 13, 2025. Uber argues the requested order is narrowly tailored to documents containing information previously sealed by the Court.

No opposition or reply has been filed as of August 24, 2026.

The Court finds Defendant failed to establish an overriding interest to support the proposed sealing. Defendant failed to submit any evidence to support its assertion that the information provided by Sauerwiner during deposition is confidential or that disclosure of the information would result in irreparable harm. Defendant asserts

in its memorandum of points and authorities that disclosure of Sauerwiner's testimony regarding Uber's driver policies would damage its ability to compete. Defendant's assertion is unsupported by any evidence from a witness with personal knowledge to make such a claim.

Defendant's proposed sealing is also not narrowly tailored. A review of

Exhibit C does not support sealing of the entirety of Sauerwiner's deposition testimony. (Maloney Dec., Ex. C.) The deposition includes multiple pages of foundational questioning and testimony regarding Sauerwiner's position and general instructions regarding depositions, for example. (Maloney Dec., Ex. C, Sauerwiner Dep., v. I, pp. 1-9.) Defense counsel's objections would also not qualify as proprietary information subject to sealing. These are obvious examples of portions of the deposition testimony that would not be subject to sealing as confidential proprietary information.

In addition,

the following excerpts identified for sealing in Exhibit B seek to redact words used by Sauerwine during his deposition that Defendant Uber quoted in isolation and out of context in its discovery objections:

(1) Exhibit B to W. Christopher Maloney's Declaration in Support of

Uber's Motion for Protective Order, at the following: Page 7, at line 15; Page

8, at lines 19-20, 22, Page 9, at lines 1, 7, & 8; Page 10, at lines 11-12;

Page 16, at lines 4-5; Page 17, at lines 23-24; Page 19, at lines 2, 8-9, &

15-16; Page 29, at lines 4-5, 13-14, & 20-21; Page 36, at lines 2, 7-8,

& 14; Page 38, at line 6; and (2) Exhibit E to W. Christopher Maloney's

Declaration in Support of Uber's Motion for Protective Order, at the following:

Page 2, paragraph 2.

Defendant relies heavily on the

prior order issued by Judge Lee S. Arian sealing Exhibits 29 and 30. The Court is not bound by the prior order,

nor does Defendant cite authority to the contrary. "Since orders to seal court records implicate

the public's right of access under the First Amendment, they inherently are

subject to ongoing judicial scrutiny, including at the trial court level." (In re Marriage of Nicholas (2010) 186

Cal.App.4th 1566, 1575.) To the extent

Defendant presented evidence in connection with its prior motion to seal that

would support sealing, Defendant failed to present that evidence here. The Court is also not required to search

through the prior record to locate evidence in support of Defendant's instant

request to seal.

Moreover, the Court does not believe

that the evidence submitted in connection with the previous motions to seal is

sufficient to warrant the findings required under the case law and California

Rules of Court.

Accordingly, Defendant Uber's Motion

to Seal Documents in Support of Uber's Motion for Protective is DENIED.

II. Uber's Motion to Seal Portions

of Plaintiffs' Opposition to Uber's Motion for Summary Judgment

A. Uber's motion to seal portions of Plaintiffs'

Opposition to its MSJ of the Third Amended Complaint is denied

Defendant

Uber moves to seal portions of Plaintiffs' opposition to its Motion for Summary

Judgment of the Third Amended Complaint.

Specifically, Uber moves to seal the following:

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Exhibit

9 to Plaintiffs' Compendium of Evidence ("COE") in its entirety;

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Exhibit

10 to Plaintiffs' COE in its entirety;

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Exhibit

29 to Plaintiffs' COE in its entirety;

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Exhibit

30 to Plaintiffs' COE in its entirety;

.

Exhibit

41 to Plaintiffs' COE in its entirety;

.

Plaintiffs'

Separate Statement in Opposition at Nos. 17 (20:27-21:4), 20 (21:19-21) and 46

(26:8-10);

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Plaintiffs'

Memorandum of Points and Authorities at 10:6-8, 15-17.

Uber argues these documents are

confidential and contain proprietary trade secret information. Uber also argues the Court previously granted

a motion to seal Exhibits 9, 10, 29 and 30 in its February 13, 2025 order. Uber argues Exhibits 9 and 10 were sealed on

multiple occasions by this Court.

In opposition, Plaintiffs do not

oppose sealing of Exhibits 9 and 10.

Plaintiffs oppose sealing Exhibits 29, 30 and 41, because Defendant

failed to establish that these documents contain trade secrets or an overriding

interest to seal them. Plaintiffs argue

there is also no overriding interest that would justify sealing the documents.

Plaintiffs argue these documents reflect Defendant Uber's policies regarding

their drivers. Plaintiffs argue the

request to seal Exhibits 29, 30 and 41 is also not narrowly tailored. Plaintiffs argue Defendant fails to

demonstrate that redaction would be an insufficient means to protect any overriding

interest.

Plaintiffs also argue the Court's

prior sealing orders are not determinative.

Plaintiffs argue a sealing order is always subject to continuing review

and modification. Plaintiffs argue

Defendant asks to seal these documents because they reflect negatively on

Defendant.

On reply, Defendant argues the

Court already issued an order sealing Exhibits 29 and 30 after making the

findings required under NBC Subsidiary.

Defendant argues it has articulated how disclosure of this

proprietary information would damage its ability to compete. Defendant argues the information contained in

Exhibits 29 and 30 would provide competitors with insight into Uber's business

operations. Defendant argues the case

law relied on by Plaintiffs to re-examine the Court's prior sealing orders is factually

and/or procedurally inapposite.

Defendant argues Exhibit 41 has

never previously been presented to the Court.

Defendant argues Exhibit 41 is an internal corporate document associated

with platform access and internal metrics for activating and/or deactivating

persons from the platform. Defendant

argues it is proprietary business methodology and satisfies the definition of a

trade secret under Civil Code section 3426.1.

Defendant argues the proposed sealing is also narrowly tailored because

Exhibit 41 is only 1.5 pages.

Defendant argues the public's

interest in the documents does not overcome its overriding interest in protecting

its proprietary information. Defendant

also argues the documents in question were not material to the Court's ruling

on Uber's motion for summary judgment.

Defendant argues the First

Amendment interest in public disclosure of civil filing is not absolute and

does not apply to discovery. Defendant

argues Exhibits 29 and 30 are transcripts from the deposition of

Sauerwein. Defendant argues Exhibits 29,

30 and 41 were irrelevant and immaterial to the Court's order granting summary

judgment. Defendant argues the First

Amendment interest in such information does not overcome its overriding

interest in it.

The Court finds Defendant fails to

establish an overriding interest in the materials it seeks to seal. Defendant submits no evidence in support of

the motion to seal. Defendant claims the

material is confidential but provides no declaration from any witness with

personal knowledge to make such a claim.

Defendant asserts in the notice of

motion that the information contains trade secret information. Defendant, however, provides no evidence

establishing the elements of trade secret.

"Trade secret" means information, including a formula, pattern,

compilation, program, device, method, technique, or process, that: (1) derives

independent economic value, actual or potential, from not being generally known

to the public or to other persons who can obtain economic value from its

disclosure or use; and (2) is the subject of efforts that are reasonable under

the circumstances to maintain its secrecy.

(Civ. Code, §3426.1.) A trade

secret must be established with evidence of the information, how or why that

information derives independent knowledge from not being generally known, and

the efforts undertaken by Uber to keep it secret. Defendant provides no such evidence. Merely asserting that the documents contain a

trade secret is insufficient.

The Court also finds Defendant's proposed

sealing is not narrowly tailored. Defendant asks that the Court seal the

entirety of Exhibits 29 and 30 based on trade secret and confidential,

proprietary business information. As

discussed above, based on a review of the transcripts, the proposed sealing is

overbroad. There are portions of the

deposition transcript that clearly do not qualify as confidential, proprietary

information. Exhibit 9 of Plaintiffs' COE is an agreement with Avis. Again, Defendant does not establish that the

entirety of the agreement is confidential, proprietary information or trade

secrets.

Defendant relies heavily on prior

orders sealing Exhibits 9, 10, 29 and 30.

As discussed above, the Court is not bound by these prior orders, and it

has a continuing duty to evaluate the propriety of sealing orders when

presented with the issue. Moreover, the Court does not believe that the evidence submitted in connection with the previous motions to seal is sufficient to warrant the findings required under the case law and California Rules of Court with respect to the exhibits, other than Exhibit 10.

Accordingly, Uber's Motion to Seal

Portions of Plaintiffs' Opposition to Uber's Motion for Summary Judgment is GRANTED

as to Exhibit 10 only and otherwise DENIED.